

The Tamil Nadu Bhoodan Yagna Rules, 1959

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State of Tamilnadu- Act

The Tamil Nadu Bhoodan Yagna Rules, 1959

TAMILNADU

India

The Tamil Nadu Bhoodan Yagna Rules, 1959

Act 4387 of 1959

Published on 22 July 1959

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The Tamil Nadu Bhoodan Yagna Rules, 1959

Published vide Notification SRO No. A-4387 of 1959, Fort St. George Gazette, dated 22nd July 1959

In exercise of the powers conferred by sub-sections (1) and (2) of section 28 of the Tamil Nadu Bhoodan Yagna Act, 1958 (Tamil Nadu Act XV of 1958), the Governor of Tamil Nadu hereby makes the following rules:-

1.

Short title.

- These rules may be called the [Tamil Nadu]

[Substituted for the word 'Madras' by Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Bhoodan Yagna Rules, 1959.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the [Tamil Nadu]

[Substituted for the word 'Madras' by Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Bhoodan Yagna Act, 1958 ([Tamil Nadu]

[Substituted for the word 'Madras' by Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XV of 1958);

(b)

"Form" means a form appended to these rules;

(c)

"section" means a section of the Act.

3.

Definition of "limits of land to be owned by landless poor person".

- For the purpose of clause (f) of section 2, a person who owns land of the class specified in column (1) of the table below shall be a landless poor person, if such land does not exceed the limits specified in the corresponding entries in column (2) of that Table:-

Class of land

Limits

(1)

(2)

Wet or garden land

1 acre

Any other class of land

2 acres

4.

Enquiry for removal of Chairman or member of State Board.

- When it is proposed to take action under sub-section (1) of section 8, the Government shall frame charges against the Chairman or the member of the State Board, as the case may be, give him an opportunity of meeting such charges, of testing the evidence adduced against him and of adducing evidence in his favour; and the order of removal shall state the charges framed against the Chairman or the member, his explanation and the finding on each charge with the reasons therefor.

5.

Enquiry for removal of Chairman or Member of the Local Committee.

- The procedure for the removal of Chairman or a member of the State Board by the Government laid down in rule 4 shall be adopted by the State Board in respect of the removal of the Chairman or a member of the Local Committee, subject to the modification that the powers exercisable by the Government under the said rule shall in relation to a Local Committee, be exercisable by the State Board.

6.

Manner of filling up of casual vacancies.

- Any fresh appointment of a person to fill any casual vacancy in the office of the Chairman or any other member of the State Board shall be made in consultation with Shri Acharya Vinobha Bhave or a person nominated by him in writing in this behalf:

Provided that the Government may, if the circumstances so warrant or in any case of emergency, make such fresh appointment without such consultation, but in consultation with the State Board and the Government shall promptly report to Shri Acharya Vinobha Bhave or a person nominated by him in writing in this behalf, the name of the person appointed to such casual vacancy.

7.

Term of office of the members of the Local Committee.

- Every member of the Local Committee shall hold office for a period of three years from the date of appointment and shall also be eligible for re-appointment.

8.

Form of declaration.

- [(a) Every declaration made for donation of lands for Bhoodan Yagna or Gramdhan by a political sufferer to whom the Government have assigned any land, shall be in Form No. I or Form No. II, as the case may be.]

[Sub-rule (1) of rule 8 was substituted by G. O. Ms. No. 489, R.D.L.A., dated the 21st March 1970.]

(b)

Every declaration made for donation of lands for Bhoodan Yagna or Gramdhan by a person other than a political sufferer to whom the Government have assigned any land shall be in Form No. I or Form No. II-A, as the case may be.

(2)

The declarations shall be filed according to the registration numbers assigned and entered in a register in Form No. III.

(3)

The declaration shall be accompanied by one or the other of the following documents, namely:-

(i)

Title deeds; or

(ii)

Kist Receipt; or

(iii)

Statement of the Village Officer.

9.

Publication of the declaration.

- Notice of every declaration filed shall be published in the District Gazette in Tamil in Form No. IV in addition to its publication in the [Fort. St. George Gazette]

[Now Tamil Nadu Government Gazette.]

. True copies of the notice of declaration shall be affixed to the Notice Board of the Taluk Office and also exhibited in the village chavadies, schools and [in any other suitable places]

[Substituted by G.O.Ms. No. 1940, R.D.L.A., dated the 13th July 1961.]

in the villages concerned.

10.

Service of notice of enquiry.

- Every notice of enquiry shall be in Form No. V and shall be served on the person concerned in any of the following ways, namely:-

(a)

By giving or tendering it to such person; or

(b)

If such person is not found, by leaving it at his last known place of abode or business or by giving or tendering it to some adult member of his family; or

(c)

if the address of such person is known to the person or his authorized [agent]

[Substituted by G.O.Ms. No. 489, R.D.L.A., dated the 21st March 1970.]

by sending it to him by post registered; or

(d)

if none of the means aforesaid is available, by affixing it in some conspicuous part of his last known place of abode or business.

11.

Procedure of enquiry.

(1)

The Tahsildar or the Deputy Tahsildar shall give to the parties a reasonable opportunity to state their case. He shall also record a brief note of the evidence of the parties and witnesses, if any, examined and upon the evidence so recorded and after consideration of any documentary evidence which may be produced by the parties, pass orders on the

objections filed.

(2)

An order confirming the declaration or declaring it null and void shall be passed by the Tahsildar or the Deputy Tahsildar under sub-section (4) of section 17 within a period of three months commencing on the date on which objections were filed last under sub- section (2) of section 17.

12.

Publication of confirmation.

- The confirmation of the declaration shall be published in Tamil in the concerned District Gazette in addition to the publication in the Tamil Nadu Government Gazette.

13.

Register.

- The State Board shall maintain a register in Form No. VI showing the grant of lands. The Local Committees shall also maintain one such register in such form for their respective areas.

14.

Publication of the grant of lands.

- The grants of lands made shall be published in the District Gazette in Tamil in addition to the publication in the Tamil Nadu Government Gazette.

15.

Conditions of grants.

(1)

The State Board shall, before granting the lands, obtain an undertaking in writing, from the grantee with the following conditions, namely:-

(i)

that he shall have no right to sell or otherwise dispose of the land;

(ii)

that the land shall not be rented out;

(iii)

that he shall pay the land revenue, the cess and other charges, due to Government for the land;

(iv)

[that the grant of the land shall be liable to cancellation if it be found that it was grossly inequitable or was made under a mistake of fact or owing to fraud or misrepresentation.]

[Original sub-clause (iv) was omitted and sub-clauses (v) and (vi) renumbered as sub-clause (iv) ad (v) by G.O.Ms. No. 2566, RDLA, dated the 9th December 1972.]

(v)

[that he shall pay to the State Board on the due date, the installment of loan amount obtained from the State Board.]

[Original sub-clause (iv) was omitted and sub-clauses (v) and (vi) renumbered as sub-clause (iv) ad (v) by G.O.Ms. No. 2566, RDLA, dated the 9th December 1972.]

(vi)

[that the State Board has the right to take back temporarily from the grantees any land already granted, for development with the help of private voluntary organisations or of the Government machinery. In such cases the grantees shall for such time as the State Board decides involve themselves in the development activity. They shall be paid at the prevailing rates for their input in the shape of work or otherwise. They shall also be paid every year such share of the net income of the year as may be decided by the Chairman of the State Board in consultation with the grantees to the extent possible;]

[Added by G.O.Ms. No. 118, RDLA, dated the 23rd January 1980.]

(vii)

The grantees shall abide by the general advice rendered by the State Board from time to time about the cropping patterns;

(viii)

[At the time of restoration of the lands after development and after recovery of the invested capital, it is open to the Chairman of the State Board to grant the lands to only such of those who have participated in the development scheme

individually or to groups of persons so as to encourage joint farming with reference to quality of lands. If there is any disagreement between the grantees and the Chairman of the State Board in this regard, the matter will be put up to the State Board and its decision shall be final.]

[Added by G.O.Ms. No. 118, RDLA, dated the 23rd January 1980.]

(2)

(i)

For violation of any of the conditions specified in sub-rule (1), the grant may be cancelled and the land resumed by the state Board without payment of any compensation whatever to the grantee provided that a reasonable opportunity shall be given to the grantee before taking action under this sub-rule.

(ii)

[On such resumption, the land shall revert in the State Board and the State Board may regrant it to any other person who will be willing to take it subject to the loan granted by the Primary Land Development Bank. All such loans shall be guaranteed by the government.]

[Substituted by G.O.Ms. No. 1529, RDLA, dated the 20th September 1977.]

(3)

[Notwithstanding anything contained in sub-rule (1) the grantee, may with the permission of the state Board, mortgage the whole or a portion of the land vested with the grantee by the State Board, in favour of the Government, or a co-operative society, or a land development bank, or a nationalised bank or the State Bank of India and its associated banks as security for advance of financial assistance for development of such land.]

[Added by G.O.Ms. No. 2160, RDLA, dated the 27th October, 1961.]

16.

Publication of the list of lands.

- In respect of all lands already donated for purposes of Bhoodan Yagna, and Gramdhan prior to the commencement of the Act particulars required shall be specified by the State Board in Form No. VII and form No. VIII respectively.

17.

List of lands donated prior to the commencement of the Act.

- The list of lands prepared by the State Board under sub-section (1) of section 20 shall in addition in the particulars specified in the said sub-section also contain the conditions subject to which such lands has been granted to any person.

18.

Funds of the State Board.

(1)

The moneys [remitted]

[Substituted by G.O.Ms. No. 1940, RDLA, dated the 13th July 1961.]

in the Fund shall be [received by Chairman of the State Board or such other member of the Board, or secretary of the Board as the Chairman may appoint in this behalf, and [deposited]

[Substituted by G.O.Ms. No. 1940, RDLA, dated the 13th July 1961.]

in

(i)

in a scheduled bank as defined in the Reserve Bank of India Act, 1934 (Central Act II of 1934), or

(ii)

the [Tamil Nadu]

[Substitute by G.O.Ms. No. 602, RDLA, dated 6th March 1971.]

State Co-operative Bank, Limited, or

(iii)

a Post Office Savings Bank.

(2)

[All such deposits shall be made in the name of the State Board, [Chennai]

[Substituted by G.O.Ms. No. 973, RDLA, dated the 4th July 1983.]

. The Chairman of the State Board or any other person, appointed by him in this behalf, shall have power to withdraw such deposits or any part thereof and operate on the bank accounts.]

(3)

No money shall be withdrawn from the bank unless it is required for immediate payment for the purposes of the Board.

(4)

Any Money which is not required for immediate expenditure [may]

[Substituted by G.O.MS. No. 1940, RDLA, dated the 13th July 1961.]

be invested.

(a)

in one or the other of the following securities, namely:-

(i)

Promissory notes, debentures, stocks or other securities of the Central Government.

(ii)

Promissory notes, debentures, stocks or other securities of any State Government.

(iii)

Stock or debentures of, or shares in companies, the interest wherein shall have been guaranteed by the Central or any State Government.

(iv)

Debentures of the [Tamil Nadu]

[Substituted by G.O.MS. No. 602, RDLA, dated 6th March 1971.]

Co-operative Central Land Mortgage Bank, limited, so long as the interest thereon is guaranteed by the State Government.

(v)

Debentures or other securities for money issued by or on behalf of any municipal body under the authority of any Act of a State Legislature in India:-

OR

(b)

in fixed deposits for periods not exceeding three years in-

(i)

a scheduled Bank as defined in the Reserve Bank of India Act 1934 (Central Act II of 1934), or

(ii)

the [Tamil Nadu]

[Substituted by G.O.MS. No. 602, RDLA, dated 6th March 1971.]

State Co-operative Bank, Limited, or

(c)

in the purchase or in the first mortgage of immovable property with the previous sanctioning the government.

(5)

The investments under sub-rule (4) shall not be pledged, encashed or withdrawn without the prior sanction of the Government.

19.

Submission of the budget.

- Tire State Board shall submit to Government not later than the 15th September, of every year, a budget in Form Nos. IX; X and XI; showing its probable receipts and expenditure. The budget shall contain provision adequate in the opinion of the Government for the due discharge of all liabilities in respect of loans contracted by the State Board and for the maintenance of a working balance.

20.

Maintenance of Registers, Accounts and conduct of Audit.

- The following registers shall be maintained in the Board's Office in connection with the funds of the State Board, namely:-

(a)

Minutes Book.

(b)

Cash Book.

(c)

A demand, collection and balance register to watch the realization of moneys from the grantees and also from Sarvodaya Panchayats.

(d)

A deposit register.

(e)

A register showing the receipts and disbursement during the previous years

(f)

A register showing the recoveries to be made from grantees and Sarvodaya Panchayats.

(g)

A miscellaneous receipts register with receipt books and counterfoils.

(h)

A posting register to compile monthly account.

(i)

A stamp register.

(j)

A contingent register.

(k)

Stock books showing receipts, issue and balance relating to-

(i)

Stationery and printed form,

(ii)

Furniture,

(iii)

Cycles, typewriters,

(iv)

Tools and plants and other stores.

21.

Receipts.

(1)

All transactions shall be brought into account and money received shall be paid in full without delay into a bank with which the Board has transaction, to be credited to the appropriate account of the State Board.

(2)

The appropriation of receipts to expenditure shall, as a rule, be avoided.

(3)

Any officer of the State Board authorized by the Chairman in this behalf shall grant receipts for all moneys received by him for credit to the State Board's Fund. A counter-foil receipt bearing printed machine numbers shall be maintained for the purpose.

(4)

Recoveries of over payments relating to the current year shall be shown as abatement of charges of the accounts concerned. If the over-payments, relate to previous year the accounts of which have been finally closed, the recoveries shall be taken as direct receipts to the accounts concerned.

22.

Expenditure.

(1)

Payments from the State Board's Fund shall be made by cash or cheque. Cheques shall not be issued for sums less than Rs. 10.

(2)

No money shall be withdrawn from the bank unless it is required for immediate payment.

(3)

Money indisputably payable shall never be left unpaid and money paid shall under no circumstances, be kept out of the

accounts a day longer than is absolutely necessary.

(4)

Any person having a claim against the State Board shall present his voucher duly verified and stamped. All vouchers shall be filled in and signed in ink. The amount shall be written in figures as well as in words. All corrections and alteration in the voucher shall be attested by the dated initials of the person signing the receipt.

(5)

Receipts for all sums exceeding Rs.20 either by cash or cheque shall be stamped. The correct head of classification according to the budget shall be recorded on each voucher by the drawing officer.

23.

Establishment.

- Pay bills, travelling allowance bills, etc. - In the preparation and drawal of pay bills, travelling allowance bills, and contingent bills, the rules contained in the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Account code, [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Treasury Code and [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Travelling Allowance Rules shall apply.

24.

Stamps.

- Postage stamps shall be purchased and issued for use in the State Board's office after they are perforated by a perforator with the impression (TNSBYB) The charges for postage stamps shall be drawn on separate contingent bills.

25.

Budget.

- The expenditure shall be classified under the following major and minor heads:-

Major

Minor

(a) Allowances of officers.

Allowances to Chairman, Members and Secretary of the Board.

(b) Pay of establishment.

Pay of establishment in Board's office.

(c) allowances.

(i) Travelling allowance.

(ii) Other allowances.

(d) Contingencies.

(i) Travelling allowance.

(ii) Other allowances.

(i) Rents, rates and taxes.

(ii) Postage and telegrams.

(iii) Stationery.

(iv) Books and periodicals.

(v) Electric and lighting charges.

(vi) Telephone charges.

(vii) Printing charges.

(viii) Furniture.

(ix) Miscellaneous.

(e) Law charges.

(i) Lawyers' fees.

- (ii) Stamp charges.
- (iii) Out fees.
- (f) Loans and advances.
- (i) Repayment.
- (ii) Interest on loans.
- (iii) Grant to loans.

Re-appropriation or transfer of funds from the allotment under one minor head expenditure to another under the same major head may be made by the Chairman. But no re-appropriation from one major head to another shall be made without the sanction of the State Board.

26.

Audit.

(1)

The audit of the Accounts of the State Board shall be conducted by the Examiner of Local Fund Accounts. The audit charges, viz., the expenditure on pay and allowances of the audit staff shall be met out of the Funds of State Board.

(2)

In auditing the accounts of the State Board's Fund, the auditor shall verify cash balance and state in the report whether the cash was readily forthcoming for verification.

(3)

The auditor shall, in the course of the audit, verify the debentures, share certificates, Government bonds and other securities and the bank pass books and report whether they were found correct.

(4)

The auditor shall report, among other points arising in audit-

(i)

whether the accounts and registers required to be maintained are kept properly;

(ii)

whether the contributions and other receipts due to the State Board have been realized at the proper time and whether due steps have been taken to recover the sums overdue and, if not, in which cases such action has not been taken;

(iii)

whether all collections have been brought to account promptly;

(iv)

whether any contribution has been remitted or reduced and if so, under proper authority;

(v)

whether the expenditure incurred is in accordance with the sanctioned budget and if there are deviations from such budget, what the deviations are;

(vi)

whether every item of expenditure has been sanctioned by the competent authority and is supported by a proper voucher;

(vii)

whether there is any item of expenditure which, in the opinion of the auditor is prima facie extravagant; and

(viii)

whether the moneys not required for immediate expenditure have been deposited in banks and surplus funds have been invested.

(5)

The auditor shall also report any material impropriety or irregularity which he may observe in the expenditure, in the collection of contributions due to the State Board or in the accounts, and also all cases of loss or waste of money together with the names of persons directly or indirectly responsible for the loss or waste.

(6)

An auditor shall append to his report-

(a)

a statement of receipts and charges under the budget heads;

(b)

a statement of income and expenditure;

(c)

a consolidated statement of assets and liabilities;

(d)

a statement of debentures, share certificates, Government bonds and other securities; and

(e)

a consolidated statement of demand, collections and balance of all items or revenue including contributions, decree amounts, etc., both arrears and current out standing whether in cash or in kind.

(7)

The auditor shall prepare an abstract of the audited accounts (receipts, charges and balances sheet) and submit to Government two copies thereof along with the audit report.

27.

Payment of allowances.

- For purposes of travelling and other allowances, the Chairman and the Members of the State Board shall be considered as Members of First Class Committees appointed by the Government and the Chairman and Members of the Local Committee as Members of the Second Class committees appointed by the government.

Appendix

Form No. I

[See [clause (1)]

[Substituted by G.O.Ms. No. 1940, RDLA, dated the 13th July 1961.]

, sub-section (1) section 16 of the Tamil Nadu [Bhoodan Yagna Act, 1958]

[Substituted for the word 'Madras' Tamil Nadu Act 1969 as amended by Tamil Nadu Act (Scccm Amendment) Order, 1969.]

(Tamil Nadu Act XV of 1958) and sub-rule (1) of rule 8]

Bhoodan Yagna Declaration Form

I/ We.....Son/Son(s) of.....resident of..... hamlet of.....being the owner(s) of the land/land (s), the tenant/tenant(s) of janmi/ or Landlord/Land-lord(s) of the land/land(s) described below hereby donate the said land/land(s) transfer all my/our right, title and interest in the said land/land(s) to the Bhoodan Yagna initiated by Shri Acharya Vinobha Bhave this.....day.....19.

I/We declare that either myself/ourselves or my heirs/ our heir (s) shall . have no title or ownership over the land/land (s), right, title and interest in the land/ lands and that the [Tamil Nadu]

[Substituted for the word 'Madras' by Tamil Nadu Adaptation of Laws Order, 1969.]

State Bhoodan Yagna Board may grant the land/land(s) right, title and interest in the land/land(s) to any person as it thinks fit.

Name of

Particulars of lands donated

Full or part, if part the extent and boundaries

to be noted

Remarks

District

Takulk

Village

Survey number

Government Inam

Wet or dry

Extent

Assessment

(1)

(2)

(3)

(4)

- (5)
- (6)
- (7)
- (8)
- (9)
- (10)

I/We declare that-

(i)
I/ We have paid in full all the public charges due to the government in respect of the land/ lands and repaid in full the loan or loans obtained from the Government together with the interest thereon, before making the donation for the Bhoodan Yagna;

(ii)
The land/ Land(s) is/ are free from encumbrances and belong to me/us exclusively/ jointly with;

(iii)
I/We have brought the land /lands under cultivation within three years from the date of assignment of the land/lands to me/us-as a political sufferer/ political sufferer(s).

Note. - clause (iii) is to be struck off when the donor/donor(s) is/are not a political sufferer/political sufferer(s).

Witnesses:

No.(1).....

No. (2)....

Dated: 19

Signature of the donor/donors.

Form No. II

[See [clause (a)]

[Substituted by G.O.Ms. No. 1940, RDLA, dated the 13th July 1961.]

of sub-section (1) section 16 of the [Tamil Nadu Bhoodan Yagna Act]

[Substituted for the word 'Madras' by Tamil Nadu Adaptation of Laws Order, 1969.]

(Tamil Nadu Act XV of 1958) and sub-rule (1) of rule 8]

Gramdan Declaration Form

I/We Son/Sons of..... residing in Village, taluk district on behalf of myself/ourselves and as guardians of my/our minor heirs through this gift deed donate all the lands mentioned below owned by me/us and which are in my/ our possession together with the right title and interest in the land to the Gramdan Yagna after being convinced about the ideals of Gramdan movement initiated by Shri Acharya Vinobha Bhave and after being fully satisfied that the village as a whole, including myself/ourself and my/our heirs and my/our family will be benefited by this gift. The donation of the above said lands is subject to the following conditions:-

1. I/ We undertake to join the Sarvodaya panchayat of the village.
2. I/ We hereby Surrender possession of one-twentieth of my/our total holdings to be specified or to be demarcated to the Sarvodaya Panchayat and from this day neither myself/ourself nor my/ our heirs shall have any right title, or interest in the lands which shall be the undisputed property of the Sarvodaya Panchayat.
3. I/We/my/our heirs/successors shall keep in possession of the remaining 19/20th of my/our holdings on behalf of the Sarvodaya Panchayat with only right of cultivation and that the lands will not be taken away from me/us without my/our consent.
4. I/We shall contribute annually to the Sarvodaya Panchayat 1/40 of the produce by such lands or the cash value thereof.
5. I/We also declare that there are no encumbrances or liabilities except the following on these lands rights, title and interest in these lands.

Encumbrances or liabilities

Date

Name of the Donor or Donars

(1) Private and (2) Police Charges

Total against each category

Number and date of document or order

Remarks

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)

I/We shall have no power to revoke, cancel or modify this gift deed. Particulars of properties

Name of

Particulars of lands donated

Full or part, if part the extent and boundaries
to be noted

Remarks

District

Takulk

Village

Survey number

Government Inam

Wet or dry

Extent

Assessment

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)

I/We declare that

(i)

I/We have paid in full, all the public charges due to the Government in respect of the land or lands and repaid in full the loan or loans obtained from the Government together with the interest thereon, before making the donation for the Guardian

(ii)

The land/land(s) is/are free from encumbrances and belong to me/us exclusively/jointly with

(iii)

I/We brought the land/land(s) under cultivation within three years from the date of assignment of the land/lands to me/us-as a political sufferer/political sufferer(s).

Note. - Clause (iii) is to be struck off when the donor/donor(s) is/are not a political sufferer/ political sufferers).

Witness:

No. (1)

No. (2)

[Form-II-A]

[Inserted by G.O.Ms. No. 49, RDLA, dated the 21st March 1970.]

[See sub-rule (1) of rule 8]

Gramdhan Declaration Form

[I/We.....son/sons of.....residing in..... Village.....Taluk,.....district on behalf of myself/ourselves and as

guardians of my/our minor heirs through this gift deed donate all the lands mentioned below owned by me/us and which are in my/our possession together with the right title and interest in the land to the Gramdan Yagna after being convinced about the ideals of Gramdan movement initiated by Shri Acharya Vinobha Bhave and after being fully satisfied that the village as a whole including myself/ ourselves and my/our heirs and my/our family will be benefited by this gift. The donation of the above said lands is subject to the following conditions:]

[Substituted by G.O.Ms. No. 1739, RDLA, dated the 23rd August 1973.]

1. I/We undertake to join the Sarvodaya Panchayat of the village.
2. I/We hereby surrender possession of one-Twentieth of my/our total holdings to be specified or to be demarcated to the Sarvodaya Panchayat and from this day neither myself/ourselves nor my/our heirs shall have any right title, or interest in the lands which shall be the undisputed property of the Sarvodaya Panchayat.
3. I/We/my/our heirs/successors shall keep in possession of the remaining 19/20th of my/our holdings on behalf of the Sarvodaya Panchayat with only right of cultivation and that the lands will not be taken away from me/us without my/our consent.
4. I/We shall contribute annually to the Sarvodaya Panchayat 1/40 of the produce by such lands or the cash value thereof.
5. I/We also declare that there are no encumbrances or liabilities except the following on these lands rights, title and interest in these lands.

Encumbrances or liabilities

Date

Name of the Donor or Donars

(1) Private and (2) Police Charges

Total against each category

Number and date of document or order

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

I/We shall have no power to revoke, cancel or modify this gift deed. Particulars of properties

Name of

Particulars of lands donated

Full or part, if part the extent and boundaries

to be noted

Remarks

District

Takulk

Village

Survey number

Government Inam

Wet or dry

Extent

Assessment

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

I/We declare that all the public charges due to the Government in respect of tire land or lands and loan or loans obtained from the Government together with interest thereon and also private debts will be paid by me/us even after making the donation for the Guardian.

Witnesses:

1.

.....

2.

.....

Signature.

Form No. III

[See Section 16 of the [Tamil Nadu Bhoodan Yagna Act, 1958]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

(Tamil Nadu Act, XV of 1958) Sub-rule (2) of Rule 8]

Serial Number

Date

Name of Donar

Name of village

Name of hamlet

Survey number

Dry or wet

Extent

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Extent donated

Boundaries, if part donated

Assessment

Date of objection

Date of publication in theGazette

Date of hearing

Date of orders

Number of Orders

(9)

(10)

(11)

(12)

(13)

(14)

(15)

(16)

Form No. IV

(See rule 9)

Notice Under section 17(1) of the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Bhoodan Yagna Act, 1958] ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

ACT, XV of 1958)

Whereas Shri/SrimathiSon/daughter of.....wife of resident of village taluk district, has filed the declaration mentioned in the Schedule below, it is hereby published that any objection to the said declaration will be received by and shall be taken into consideration if filed within two months from the date of publication of the declaration.

Given under my hand this.....day of 19.....

Signed

Revenue Officer

Schedule

Bhoodan Yagna Declaration Form

I/We son/son(s) of..... resident of.. hamlet of being the owner(s) of the land/land(s); the tenant/tenants of janmi or landlord/landlords of the land/ lands described below hereby donate the said land/land(s) transfer all my/our right, title and interest in the said land/ land(s) to the Bhoodan Yagna initiated by Shri Acharya Vinobha Bhave this day 19.

I/We declare that either myself/ourselves or my heirs/our heirs shall have no title or ownership over the land/land(s) right, title and interest in the land/ land(s) and that the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

State Bhoodan Yagna Board may grant the land/lands, right, title and interest in the land/lands to any person as it thinks fit.

Name of

Particulars of lands donated

Full or part, if part the extent and boundaries
to be noted

Remarks

District

Takulk

Village

Survey number

Government Inam

Wet or dry

Extent

Assessment

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

I/ We declare that-

(i)

I/We have paid in full all the public charges due to the Government in respect of the land/lands and repaid in full the loan or loans obtained from the Government together with the interest thereon, before making the donation for the Bhoodan Yagna.

(ii)
The land/land(s) is/are free from encumbrances and belong to me/us exclusively/jointly with

(iii)
I/We brought the land/lands under cultivation within three years from the date of assignment of the land /lands to me/us -as a political sufferer/political sufferers.

Note. - Clause (iii) is to be struck off when the donor/donor(s) is/are not a political sufferer/ political sufferers).

Witnesses:

No. (1).....

No.(2).....

Dated 19.

Signature of the donor/donors.

Gramdan Declaration Form

I/We son/sons of residing invillage,.....taluk,.....district, on behalf of myself/ourselves and as guardians of my/our minor heirs through this gift deed donate all the lands owned by me/us and in my/our possession (all my our rights, title and interest in the land/land(s) mentioned below to the Sarvodaya Panchayat of the village.

I/We donate the lands-right, title and interest in the land/land(s) after being convinced about the ideas of Gramdan movement initiated by Shri Acharya Vinobha Bhave and after being fully satisfied that the village as a whole including myself/ourselves and my/our heirs and my/our family! will be benefited by this gift. The lands right, title and interest in the lands, shall vest with the Sarvodaya Panchayat from this day and other myself/ourselves or my/our heirs shall have any right, title or interest over lands or right, title and interest in the lands which shall be the undisputed property of the Sarvodaya Panchayat. The title, right and interest in the lands may be transferred in the name of the Sarvodaya Panchayat. I/We also declare that there are no encumbrances or liabilities except the following on these lands, right, title and interest and the lands.

Encumbrances or Liabilities

Date

Name of the Donor or Donars

(1) Private and (2) Police Charges

Total against each category

Number and date of document or order

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

I/We shall have no power to revoke, cancel or modify this gift deed.

Particulars of Properties

Name of

Particulars of lands donated

Full or part, if part the extent and boundaries
to be noted

Remarks

District

Takulk

Village

Survey number

Government Inam

Wet or dry

Extent

Assessment

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

I/We declare that-

(i)

I/We have paid in full all the public charges due to the Government in respect of the land/land(s) and repaid in full the loan or loans obtained from the Government together with the interest thereon, before making the donation for the gramdan.

(ii)

The land/land(s) is/are free from encumbrances and belong to me/us exclusively/jointly with.

(iii)

I/We brought the land/land(s) under cultivation within three years from the date of assignment of the land/lands to me/us-as a political sufferer/political sufferer(s).

Note. - Clause (iii) is to be struck off when the donor/donor(s) is/are not a political sufferer/political sufferers).

Witnesses:

No. (1)

No. (2)

Dated 19. ...

Signature of the donor/donors.

Form No. V

[(See sub-section (3) of section 17 of the [Tamil Nadu]

[Substituted by G.O.Ms. No. 1640, RDLA, dated the 13th July 1961.]

Bhoodan Yagna Act, Tamil Nadu Act, XV of 1958) and rule 10)]

Form of Notice

Notice under rule 10 of the Tamil Nadu Bhoodan Yagna Rules, 1959

Whereas has presented an objection petition to this office regarding the declaration made by for the donation of the land(s) mentioned in the schedule below to the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

State Bhoodan Yagna Bord.

Take notice if you have any cause to show why the declaration should not be declared as null and void you should appear in person or by a counsel duly instructed with proofs in this office on the day of 19 , when the said objection will be heard and disposed of, failing which the said declaration will be heard and disposed of ex-parte and it will be presumed that you consent to the declaration of the donation as null and void confirmation of the declaration Given under my hand and seal of the office this day.... of 19

Schedule 2

Description of Land

1. Name of district.

2. Name of taluk.

3. Name of village.

4. Survey No.

5. Government or Inam.

6. Classification.

Related AI tags, queries and research notes

Translation